

HOUSE No. 3006

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the valuation of long term residences.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>
<i>Peter Barbella</i>		<i>1/17/2025</i>

HOUSE No. 3006

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 3006) of James Arciero and Peter Barbella relative to the assessed property tax valuation of certain long term residences. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2691 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the valuation of long term residences.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 59 of the general laws is hereby amended by inserting after section 38, as
2 appearing in the 2018 official edition, the following section:-

3 Section 38 1/2 In a city or town that accepts this section, the assessed valuation of real
4 property owned by a person who has occupied said property for 30 years, shall be set at the
5 valuation of the property pursuant to section 38 in the thirtieth year of domicile; provided,
6 however, that said owner's income shall not exceed 100 percent of the area median income as
7 determined by the federal Department of Housing and Urban Development; and provided
8 further, that said owner shall not have more than \$100,000 in liquid assets, excluding the value
9 of their domicile. Said valuation shall not increase unless and until the real property is sold or
10 transferred.